



In The
Supreme Court of the United States
October Term, 1992

MICHAEL J. CAVANAUGH, EXECUTIVE DIRECTOR
OF THE SOUTH CAROLINA DEPARTMENT OF
PROBATION, PAROLE, AND PARDON SERVICES;
SOUTH CAROLINA DEPARTMENT OF PROBATION,
PAROLE, AND PARDON SERVICES,

Petitioners,

vs.

GARY LEE ROLLER,

Respondent.

On Writ Of Certiorari To The United States
Court Of Appeals For The Fourth Circuit

JOINT APPENDIX

T. TRAVIS MEDLOCK,
Attorney General

EDWIN W. EVANS, Chief
Deputy Attorney General

CARL N. LUNDBERG*
Chief Legal Counsel
S. C. Dept. of Probation,
Parole, and Pardon
Services
Post Office Box 50666
Columbia, SC 29250
Telephone: (803) 734-9207
Counsel for Petitioners

*Counsel of Record

W. GASTON FAIREY, ESQ.*
FAIREY & PARISE
Post Office Box 8443
Columbia, SC 29202
Telephone: (803) 252-7606
Counsel for Respondent

Petition For Certiorari Filed March 8, 1993
Certiorari Granted May 24, 1993

TABLE OF CONTENTS

	Page
Relevant Docket Entries	1
Gary Lee Roller's Complaint, filed in the United States District Court for the District of South Carolina	2
Defendants' (Petitioners here) Motion to Dismiss or for Summary Judgment, filed in the United States District Court for the District of South Carolina .	12
Magistrate's Report and Recommendation entered in the United States District Court for the District of South Carolina, Columbia Division, September 12, 1991	14
Opinion and Order of the United States District Court for the District of South Carolina, filed November 8, 1991	23
Judgment of the United States District Court for the District of South Carolina, filed November 12, 1991	27
Opinion of the United States Court of Appeals for the Fourth Circuit, decided January 15, 1993	28
S.C. Code Ann. § 24-21-610 (1976), enacted June 15, 1981 (Parole Eligibility)	37
S.C. Code Ann. § 24-21-620 (1976), enacted June 15, 1981 (Parole Hearing Rescheduling)	39
S.C. Code Ann. § 24-21-645 (1976), enacted June 3, 1986 (Parole Hearing Rescheduling)	40
S.C. Code Ann. § 24-21-650 (1976), enacted June 3, 1986 (Parole Hearing Rescheduling)	40
S.C. Code Ann. § 16-1-60 (1976), enacted June 3, 1986 (Definition of Violent Crime)	41

Relevant Docket Entries

91-6688 Roller v. Cavanaugh, et al.

- 12/10/91 Prisoner (cvrgt) case docketed. (yj)
 - 1/15/93 Published, authored opinion filed.
([91-6688] (jc)
 - 1/15/93 Judgment order filed. Decision: Reversed
and Remanded. [91-6688] (yj)
 - 2/5/93 COURT ORDER filed granting motion to
stay mandate [1763214-1] until 3/8/92
Copies to all counsel. [91-6688] (yj)
-

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA

GARY LEE ROLLER #116220)
(Enter above the full name of the)
plaintiff in this action.))

Vs.)

MICHAEL J. CAVANAUGH,)
EXECUTIVE DIRECTOR OF THE)
SOUTH CAROLINA)
DEPARTMENT OF PROBATION,)
PAROLE, AND PARDON)
SERVICES, ET AL.)
_____)
_____))

(Enter above the full name(s))
of defendant or defendants in)
this action.))

COMPLAINT

Civil Action No.)
3:90-3054-15J)
(To be assigned)
by Clerk))

(Filed)
Dec. 28, 1990))

I. Previous Lawsuits

- A. Have you begun other lawsuits in state or federal court dealing with the same facts involved in this action or otherwise relating to your imprisonment? Yes () No (XX)
- B. If your answer to A is yes, describe the lawsuit in the space below. (If there is more than one lawsuit, describe the additional lawsuits on another piece of paper, using the same outline.)

1. Parties to this previous lawsuit

Plaintiffs N/A _____

Defendants N/A _____

2. Court (if federal court, name the district; if state court, name the county)

N/A _____

3. Docket number N/A _____

4. Name of judge to whom case was assigned
N/A _____

5. Disposition (for example: Was the case dismissed? Was it appealed? Is it still pending?)

N/A _____

6. Approximate date of filing lawsuit N/A _____

7. Approximate date of disposition N/A _____

II. Place of Present Confinement Central Correctional Institution, 1515 Gist Street, Columbia, S.C. 29202

- A. Is there a prisoner grievance procedure in this institution? Yes (XX) No ()
- B. Did you present the facts relating to your complaint in the state prisoner grievance procedure? Yes () No (X)
- C. If your Answer is YES,
1. What steps did you take? N/A _____
2. What was the result? N/A _____
- D. If your answer is No, explain why not. The grievance procedure here at this prison does not deal with constitutional violations.
- E. If there is no prison grievance procedure in the institution, did you complain to prison authorities? Yes (XX) No ()

F. If your answer is YES,

1. What steps did you take? I asked my classification case worker about why the parole board was misapplying new law to me.
2. What was the result? I was told that what they were doing was right and that they could do it.

III. (In Item A below, place your name and inmate number in the first blank and place your present address in the second blank. Do the same for additional plaintiffs, if any.)

A. Name of plaintiff Gary Lee Roller #116220

Address 1515 Gist Street, Bldg. #1

Columbia, S.C. 29202

(In Item B below, place the full name of the defendant in the first blank, his official position in the second blank, and his place of employment in the third blank. Use Item C for the names, positions, and places of employment of any additional defendants)

B. Defendant Michael J. Cavanaugh is employed as Executive Director of the S.C.D.P.P.S. at 2221 Devine Street, Columbia, S.C.

C. Additional Defendants All present members of the South Carolina Department of Probation, Parole, and Pardon Services Board, et al.

Statement of Claim

(State here as briefly as possible the facts of your case. Describe how each defendant is involved. Include also the names of other persons involved, dates, and places. Do not give any legal arguments or cite any cases or

statutes. If you intend to allege a number of related claims, number and set forth each claim as a separate paragraph. Use as much space as you need. Attach extra sheet if necessary.)

CIVIL RIGHTS COMPLAINT WITH TRIAL BY JURY DEMAND

This is a 1983 Action filed by Gary Lee Roller, a State prisoner, alleging violations of his Constitutional rights, and seeking money damages, declaratory [sic] relief, and injunctive relief. Plaintiff further seeks a trial by JURY.

JURISDICTION

- 1 This action is brought pursuant to 42 U.S.C. 1983.
2. This Court has jurisdiction founded upon 28 U.S.C. 1314.
3. Plaintiff further invokes the pendent jurisdiction of this Court.
4. The amount in controversy exceeds Ten-Thousand and no 100 dollars.

PARTIES

5. The Plaintiff, Gary Lee Roller, is and was at all times relevant to this lawsuit, a citizen of the United States of America and of the State of South Carolina.

6. Defendant, Michael J. Cavanaugh, is and was at all times relevant to this lawsuit, a citizen of the United States of America and of the State of South Carolina.

Michael J. Cavanaugh is the executive director of the parole board of South Carolina. It is his responsibility's [sic], along with all other members of the parole board, to provide for the proper care, treatment, supervision, and management of the offenders under the control of the parole board. Michael J. Cavanaugh is sued in his official and individual capacities. All other members of the South Carolina Board of Probation, Parole, and Pardon Services are sued in their official and individual capacities.

FACTS

7. Plaintiff, Gary Lee Roller, was arrested in December of 1982 and was sentenced in March of 1983 to a term of thirty (30) years for the crime of voluntary manslaughter, and five (5) years consecutive for grand larceny, by the Honorable Judge George Coleman, at the Chester County Courthouse.

8. The law concerning parole that was in effect at the time of Plaintiff's conviction in March of 1983, were Section 10 of Act 100, Section 24-21-620 of the South Carolina Code of Laws that was last amended in 1981 and specifically stated:

. . . . upon a negative determination the prisoners case *SHALL* be reviewed every twelve (12) months thereafter for the purpose of such determination.

9. This was the applicable law in effect at the time of Plaintiff's conviction. This was the law that the Honorable Judge George Coleman took into consideration when he sentenced Plaintiff; this was the law that was and is part of Plaintiff's sentence.

10. In June of 1986, the laws concerning parole eligibility were changed by the State Legislature. This change became effective January of 1987; this new law *extended* the review of prisoners convicted of a violent crime (*Plaintiff's crime is NOT classified a violent crime by S.C.D.C. and Plaintiff did go before the parole board in one-fourth of his time instead of one-third time as the violent offenders do*) to twenty-four (24) months after a negative determination of a prisoners initial parole review.

11. Plaintiff became eligible for parole after completing one-fourth of his original sentence, and was taken before the parole board in October of 1990 for his initial review.

12. At this time, October 1990, Plaintiff was denied parole by the members of the parole board, and Plaintiff received a notice of rejection that stated that Plaintiff will again be scheduled for a parole consideration hearing on or about October 31, 1992.

13. It is clear that the South Carolina Department of Probation, Parole, and Pardon Service are mis-applying the law of 1986 to Plaintiff with total disregard of the law that was in effect when Plaintiff was sentenced and is part of Plaintiff's sentence.

FIRST CAUSE OF ACTION

The Defendant(s) actions, as stated in paragraph 1 thru 13, have violated the Ex-Post Facto Clause of Article I, Section 10 of the United States Constitution by:

- (a) The unconstitutional retroactive application of the more punitive in nature and design

laws of 1986 to Plaintiff whose sentencing took place in 1983;

- (b) The unconstitutional application of the new 1986 law to Plaintiff was unforeseeable by Plaintiff at the time of Plaintiff's sentencing, and is altering Plaintiff's situation to his disadvantage;
- (c) Plaintiff was given *No Fair Warning* that the time between his parole reviews would increase an extra twelve (12) months, when he was sentenced for his crimes in 1983;
- (d) This mis-interpretation of the 1986 laws is a mid-stream increase in punishment as applied to Plaintiff; an increase of Twelve (12) extra months imprisonment before Plaintiff's next opportunity to be considered for parole, is harsher and more burdensome punishment than the punishment in effect when Plaintiff was sentenced.
- (e) Plaintiff is suffering increased punishment due to this unconstitutional application of the 1986 laws; punishment that is harsher than the punishment proscribed by State Statute during Plaintiff's sentencing;
- (f) This impermissible retroactive application of the 1986 parole statutes by the parole board, is penalizing Plaintiff more severely [sic] than would have been possible at the time that Plaintiff last committed an act for which Plaintiff was sentenced to;
- (g) This unconstitutional application of the 1986 parole statutes to Plaintiff, is being preformed [sic] by the Defendant(s) under the color of State law without the express authority to do so.

SECOND CAUSE OF ACTION

The Defendant(s) actions as stated in paragraphs 1 thru 13 and the First Cause of Action, violates Substantial Due Process of the Fourteenth Amendment of the Constitution of the United States of America, in that:

(a) The applicable parole statutes at the time of Plaintiff's crime afforded Plaintiff substantial protectable property and liberty rights, and the application of the 1986 laws to Plaintiff is depriving Plaintiff these guaranteed entitlements and substantial protections.

(b) The application of the 1986 laws to Plaintiff, whose conviction took place in 1983, have impermissably forced Plaintiff to suffer post-conviction, Legislative increased punishment without the protections of a judicial trial; punishment in addition to that prescribed by statute at the time of Plaintiff's conviction.

(c) The unconstitutional application of the 1986 laws to Plaintiff, who was sentenced in 1983, aggravates and makes more greater Plaintiff's sentence than it was at the time of Plaintiff's sentencing.

(d) This unconstitutional retroactive application of the 1986 parole statutes to Plaintiff by the Defendant(s) is an on-going practice that Defendant(s) are preforming [sic] *Under The Color of State Law*, without the express authority to do so, and are being preformed [sic] in an arbitrary and vindictive manner toward Plaintiff.

THIRD CAUSE OF ACTION

As a direct result of Defendant(s) mis-interpretation and Mis-Application of the 1986 laws, as stated in paragraphs 1 thru 13, in Plaintiff's First Cause of Action, and

Plaintiff's Second Cause of Action, Defendant(s) are violating Article I Section 3 (Due Process), and Article I Section 4 (Ex-Post Facto) of the Constitution of the State of South Carolina, in that:

(a) Defendant(s) actions have caused Plaintiff to suffer severe emotional suffering, loss of potential family contact and support, and the denial of guaranteed constitutional rights.

(b) The unconstitutional [sic] of the 1986 laws to Plaintiff are being performed by Defendant(s) *Under The Color Of State Law* without the express authority to do so, and are being preformed with total disregard to Plaintiff's Constitutional rights.

RELIEF

WHEREFORE, Plaintiff, Gary Lee Roller, would pray for the following relief, jointly and severally against all Defendant(s):

1. Compensatory damages in the amount of thirty-five thousand dollars and no/100 (\$35,000.00), for the emotional distress and the deprivation of guaranteed Constitutional rights;

2. Punitive damages that this Court and a jury may deem just and proper;

3. Declaratory relief, that the Defendant(s) are applying the 1986 laws to Plaintiff in an unconstitutional manner;

4. Injunctive relief, that a permanent injunction be issued by this Honorable Court, which prohibits the

Defendant(s) and any further parole board members from applying the 1986 laws toward Plaintiff's future parole reviews;

5. Grant such other relief that this Court may deem to be just and proper.

Signed this 27 day of November, 1990.

/s/ Gary Lee Roller
Gary Lee Roller, pro-se

I declare under the penalty of perjury that the foregoing is true and correct.

11/27/90
DATE

/s/ Gary Lee Roller
Gary Lee Roller

IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
COLUMBIA DIVISION

Gary Lee Roller, #116220	)	Civil Action No.
Plaintiff,	)	3:90-3054-15J
	)	
v.	)	MOTION TO
	)	DISMISS OR
Michael J. Cavanaugh,	)	FOR SUMMARY
Executive Director of the	)	JUDGMENT
South Carolina Department of	)	
Probation, Parole, and	)	(Filed
Pardon Services, et al.	)	June 4, 1991)
Defendants.	)	
_____	)	

The Defendants, Michael J. Cavanaugh and the South Carolina Department of Probation, Parole, and Pardon Services by their attorney, move the court to dismiss the above captioned cause or in the alternative to grant summary judgment in favor of the Defendants based upon the following grounds:

1. The Plaintiff has failed to state a cause of action;
2. The Plaintiff's cause of action is precluded by the Eleventh Amendment to the United States Constitution;
3. The Plaintiff's cause of action cannot be brought pursuant to 42 U.S.C. §1983;
- 4) The Federal Court should abstain where the Plaintiff has a clear legal remedy which he has not pursued.
- 5) The Defendants are immune from any liability for their official acts;

6) The Plaintiff has failed to exhaust his legal remedies which are available in the State of South Carolina.

Respectfully submitted,

/s/ Carl N. Lundberg,
CARL N. LUNDBERG, #2744
Chief Legal Counsel
S. C. Dept. of Probation,
Parole, and Pardon Services
P.O. Box 50666
Columbia, SC 29250
(803) 734-9207

Attorney for Michael J.
Cavanaugh, Commissioner, and
the South Carolina Department
of Probation, Parole, and
Pardon Services

Columbia, South Carolina
3 day of June, 1991

ENTERED
9-12-91

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF SOUTH CAROLINA
COLUMBIA DIVISION

Gary Lee Roller, 116220,	)	Civil Action No.
Plaintiff,	)	3:90-3054-15J
-versus-	)	
Michael J. Cavanaugh,	)	<u>REPORT AND</u>
Executive Director of the	)	<u>RECOMMENDATION</u>
South Carolina Department	)	(Filed
of Probation, Parole, and	)	SEP 11 1991)
Pardon Services, et al,	)	
Defendants.	)	

This civil rights complaint brought by a state prisoner proceeding *pro se* is before the undersigned United States Magistrate Judge for a report and recommendation on the defendants' summary judgment motion under Rule 56 of the Federal Rules of Civil Procedure. 28 U.S.C. § 636(b).

The Plaintiff, Gary Lee Roller (Roller), is presently incarcerated at a facility of the South Carolina Department of Corrections. Roller was convicted in the Chester County Court of General Sessions of voluntary manslaughter and grand larceny committed on December 13, 1982. He was sentenced on March 25, 1983, to serve thirty (30) years for voluntary manslaughter and five (5) years consecutive for grand larceny. He initially became eligible for parole on October 27, 1990, pursuant to the parole eligibility statute in force on the date of his offense.

Roller received a parole hearing on October 31, 1990, at which time he was rejected for parole, notified of the reasons for the rejection, and informed that his next hearing would be October 31, 1992.

Roller brings this civil rights action pursuant to 42 U.S.C. § 1983 against Michael J. Cavanaugh, Executive Director of the South Carolina Department of Probation, Parole and Pardon Services, as well as all present members of the Pardon and Parole Board. The defendants are being sued in their official and individual capacities for compensatory and punitive damages, declaratory relief, and a court order enjoining the defendants from applying the South Carolina Omnibus Criminal Justice Improvement Act (Act) of 1986 related to the manner and timing of parole reviews to Roller.

Roller asserts that the defendants' application of the Act to him increasing the time between parole reconsideration hearings from one (1) to two (2) years is violative of the prohibition against *ex post facto* laws and denies him due process under the Constitution of the United States.

Section 24-21-645 of the South Carolina Code of Laws (Law. Co-op. 1976) made effective June 15, 1981, provided that all inmates would be reviewed for parole annually following an initial rejection for parole. That section was amended effective June 3, 1986, to provide that a violent offender would not be rescheduled for another parole hearing for a period of two (2) years from the date of his rejection.

Roller contends:

1. The defendants application of the 1986 laws to Roller increases the punishment he must suffer for his crimes and is thus a impermissible retroactive application in violation of the *ex post facto* clause.
2. Application of the 1986 laws to the plaintiff denies him a substantial protected liberty interest in violation of the due process clause of the fourteenth amendment of the United States Constitution.
3. The application of 1986 laws to the plaintiff violates due process and *ex post facto* clauses of the South Carolina Constitution.

On June 4, 1991, the defendants filed a motion to dismiss or for summary judgment. They argue that they are immune from liability under the eleventh amendment and not amenable to suit under § 1983. Further, they assert they are entitled to defense of qualified immunity. In addition, they argue that the plaintiff has not exhausted any state remedies as required and that the changes in parole procedures do not violate the *ex post facto* or due process clauses of the Constitution.

A copy of the defendants' motion and supporting memorandum was provided Roller on June 13, 1991, along with an explanation of dismissal and summary judgment procedures with pertinent extracts from Rules 12 and 56 of the Federal Rules of Civil Procedure similar to that required by *Roseboro v. Garrison*, 528 F.2d 309 (4th Cir. 1975).

In response, Roller filed his opposition to the defendants' motion, memorandum in support of the opposition, his own affidavit, a motion for appointment of counsel, and an affidavit in support of motion for appointment of counsel. Roller's motion for appointed counsel was denied on July 15, 1991. Hence, it appears that the defendants' motion is ready for consideration.

A review of the record and relevant case law indicates that the defendants' summary judgment motion should be granted.

Roller's claim for damages against the South Carolina parole officials in their official capacity is barred by the eleventh amendment. See, *Edelman v. Jordan*, 415 U.S. 651, 662-63 (1974). Further, the parole officials sued in their individual capacities are entitled to absolute immunity under *Pope v. Chew*, 521 F.2d 400 (4th Cir. 1975). In *Pope*, the Fourth Circuit held that parole officials involved in the quasi-judicial function of considering parole applications are entitled absolute personal immunity. 521 F.2d at 405-06. The defendants in their individual capacities acting as parole officials are protected by the qualified immunity under *Harlow v. Fitzgerald*, 457 U.S. 800 (1982). Further since the constitutional question raised by Roller is unsettled, qualified immunity is an acceptable alternate ground for dismissal. See, *Anderson v. Creighton*, 107 S.Ct. 3034 (1987). Nonetheless, a defendant sued in his or her capacity as a Parole Board member could be subject to an injunction under the *Ex Parte: Young*, 209 U.S. 123 (1908) (exception to eleventh amendment immunity). Roller has alleged an ongoing violation bringing his claim within the purview of the *Young* exception. *Papasan v. Allain*, 478 U.S. 265 (1986), *McConnell v. Adams*, 829 F.2d 1319 (4th

Cir. 1987), *cert. denied*, ___ U.S. ___, 108 S.Ct. 1731 (1988). Therefore, only to the extent that Roller seeks injunctive relief preventing these officials future conduct, may this action proceed.

The defendants' argument that Roller's action is designed ultimately to shorten the period of his incarceration and thus is subject to the exhaustion requirement of 28 U.S.C. § 2254(b) is unfounded. While a § 1983 suit is not a substitute for a writ of habeas corpus, here Roller seeks only consideration for parole, not release or shortening of the period of incarceration. *Prieser v. Rodriguez*, 411 U.S. 475 (1973). Under these circumstances, the Fourth Circuit has held that § 1983 may be used to challenge parole procedures. *Strader v. Troy*, 571 F.2d 1263 (4th Cir. 1978).

Initially, there is no constitutional right to parole unless the state creates a protectable liberty interest in the establishment of a parole system. *See, Greenholtz v. Nebraska Penal Inmates*, 442 U.S. 1, 99 S.Ct. 2010 (1979). Such an interest arises only when a parole statute provides that specific conditions mandate release. *Damiano v. Florida Parole & Probation Commission*, 785 F.2d 929 (11th Cir. 1986).

The plaintiff has no right to parole in South Carolina. S.C. Const. Art. IV, § 14. Parole is a matter of grace bestowed by the government. *Bearden v. State*, 443 F.2d 1090 (1971). State law does not mandate parole even if certain conditions are met by an inmate. That is, the conditions listed in § 24-21-640 must all be satisfied before the Board will consider exercising their discretion to release an inmate on parole. In the event the Board

denies parole to an inmate, it is required to give the inmate written notice of the reasons that the parole was rejected. It is uncontroverted that Roller was provided with the reasons for the denial of his parole. His due process claims are without merit.

Next, Roller alleges that the application of the 1986 Act to him by the defendants violates the *ex post facto* clause of the United States Constitution. In 1982, when he committed his crimes, § 24-21-645 provided that the frequency of parole reconsideration hearings would be every twelve (12) months following an initial rejection for parole. In 1986, § 24-21-645 was amended to provide that parole reconsideration hearings for persons convicted of violent crimes as defined in § 16-1-60 also effective June 3, 1986, would be held every two (2) years following an initial rejection. It is uncontested that the defendants have applied these code sections retroactively to Roller.¹

The United States Constitution, Art. I, § 10 states in pertinent fact: "No state . . . shall pass any bill of attainder or *ex post facto* law . . ." In *Fender v. Thompson, et al*, 883 F.2d 303 (4th Cir. 1989), the Fourth Circuit held that the *ex post facto* clause "forbids . . . the state to enact any law which imposes a punishment for an act which was not punishable at the time it was committed, or imposes additional punishment than that then prescribed." *Weaver v. Graham*, 450 U.S. 24 (1981). Two critical elements must be present for a criminal or penal law to be *ex post facto*: it must be retrospective, that is it must apply to events

¹ Roller's conviction for the crime of voluntary manslaughter is considered a violent crime subject to this section.

occurring before its enactment, and it must disadvantage the offender effected by it. *Id.* at 29.

Further, the Supreme Court has held:

"[T]he prohibition of *ex post facto* laws does not extend to every change of the law that 'may work to the disadvantage of a defendant.' It is intended to secure 'substantial personal rights' from retroactive deprivation and does not 'limit the legislative control of remedies and modes of procedure which do not effect matters of substance.' (quoting *Dolbert v. Florida*, 432 U.S. 282, 293 (1977)).

Portley v. Grossman, 444 U.S. 1311, 1312 (1980).

In *Gunter v. State*, the South Carolina Supreme Court in addressing this issue held:

On this issue, we find persuasive the holding of the California Supreme Court *In Re: Jackson*, 39 Cal.3rd 464, 703 Pac.2d 100 (1985). There the court held that a statutory amendment prolonging the time before reconsideration for parole was a procedural change outside the purview of the *ex post facto* clause. The court reasoned that the amendment did not alter the criteria by which parole suitability is determined, but rather only changed the frequency with which an inmate was given to demonstrate parole suitability. By the same token, the standards governing the petitioner's parole eligibility have not been changed. Instead, only the frequency with which petitioner can be reconsidered for parole has been altered. We find no *ex post facto* violation in the application of the questioned statute to petitioner.

378 S.E.2d 443 (S.C. 1989).

No additional post-conviction punishment has been imposed because Roller's sentence has not been lengthened, his possibility of parole has not been revoked, and the conditions he must meet to be considered for parole eligibility remain the same. The only change is a procedural one controlling how often Roller's case is reviewed for parole.

Lastly, Roller's allegation that application of the Act to him is violative of the South Carolina Constitution does not provide a basis for a § 1983 suit. Section 1983 was intended to vindicate only federal rights determined under federal substantive law, not claims arising under state law. *Weller v. Department of Social Services*, 901 F.2d 387 (4th Cir. 1990); *Clark v. Link*, 855 F.2d 156 (4th Cir. 1988); *See, Paul v. Davis*, 424 U.S. 693 (1976); *Riccio v. County of Fairfax*, 907 F.2d 1459 (4th Cir. 1990).

In summary, inmates in South Carolina have no protected liberty interest in parole; lengthening of the time between parole reconsideration from one (1) to two (2) years does not offend the due process or *ex post facto* protections of the United States Constitution, and § 1983 is not available to test application of the Act to Roller under the South Carolina Constitution.

Accordingly, for the above stated reasons, it is recommended that the defendants' motion for summary judgment be granted.

Respectfully submitted,

/s/ Robert S. Carr
Robert S. Carr
 United States Magistrate
 Judge

Charleston, South Carolina
 September 10, 1991

IN THE UNITED STATES DISTRICT COURT
 FOR THE DISTRICT OF SOUTH CAROLINA
 COLUMBIA DIVISION

Gary Lee Roller, #116220	)	CA No.
	)	3:90-3054-20J
Plaintiff,	)	
	)	ORDER
vs.	)	
	)	(Filed
Michael J. Cavanaugh,	)	Nov 8 1991)
Executive Director of the South	)	
Carolina Department of Probation,	)	
Parole, and Pardon Services et al.	)	
Defendants.	)	

This matter is before this court with the Report and Recommendation of the United States Magistrate Judge, made in accordance with 28 U.S.C. §636(b) and Local Rule 19.02 (D.S.C.). The recommendation has no presumptive weight, and the responsibility to make a final determination remains with the United States District Court. *Mathews v. Weber*, 423 U.S. 261 (1976). The court is charged with making a *de novo* determination of those portions of the Report and Recommendation to which specific objection is made. The court may accept, reject, or modify, in whole or in part, the recommendation made by the magistrate judge or recommit the matter to him with instructions. 28 U.S.C. §636(b)(1).

The plaintiff, Gary Lee Roller ("Roller"), is presently incarcerated by the South Carolina Department of Corrections on convictions of voluntary manslaughter and grand larceny. Roller was sentenced on March 25, 1983, to serve consecutive terms of thirty (30) and five (5) years.

Roller initially became eligible for parole on October 27, 1990.

Roller received a parole hearing on October 31, 1990, at which he was rejected for parole and notified his next hearing would be October 31, 1992.

S.C. Code Ann. §24-21-645 (Law. Co-Op. 1976) at the time of Roller's sentencing provided that all inmates would be reviewed for parole annually following an initial rejection for parole. That section was amended, effective June 3, 1986, to provide that a violent offender would not be rescheduled for another parole hearing for a period of two (2) years from the date of his rejection.

Roller brought this action under 42 U.S.C. §1983 to challenge the application of the two year waiting period for review of parole from the 1986 law. Roller contends that the application of the 1986 law to him violates the *ex post facto* clauses of the United States and South Carolina Constitutions and the due process clauses of the South Carolina Constitution and the fourteenth amendment of the United States Constitution.

Both parties filed objections to the Report and Recommendation of Magistrate Judge Carr.

Roller states three objections. First, Roller contends that the magistrate judge misunderstood his claims which had the effect of amending his complaint. The court finds that Magistrate Judge Carr properly understood and fairly addressed Roller's claims. This objection is without merit.

Second, Roller asserts that he should be allowed to recover monetary damages from the defendants in their individual capacities and prospective relief from the

defendants in their official capacity. The magistrate judge properly addressed each of these claims. The defendants in their individual capacities are protected by a qualified immunity. *Harlow v. Fitzgerald*, 457 U.S. 800 (1982). Roller has made no showing of a lack of good faith to defeat this immunity. Therefore, the defendants are not subject to monetary damages.

Roller contends that he should be entitled to injunctive relief under *Ex Parte Young*, 209 U.S. 123 (1908). The magistrate judge properly stated that injunctive relief was the only relief that Roller could seek. However, the fact that Roller could seek injunctive relief against the defendant's in their official capacities does not mean that he was entitled to such relief. Therefore, the second objection is without merit.

Third, Roller states that he "realleges each and every pleading, affidavit, motion, and attachment put forth in this action heretofore, as if repeated in full verbatim herein." A restatement of the allegations of the complaint is not a meritorious objection.

The defendants also objected to the Report and Recommendation of Magistrate Judge Carr. The defendants object to the conclusion that "§1983 can be used to challenge parole procedures", which is based on an interpretation of *Strader v. Troy*, 571 F.2d 1263 (4th Cir. 1978). This court finds that the magistrate judge's interpretation of *Strader* is correct and that *Strader* is the valid law of this circuit. Therefore, this objection is without merit.

Further, the defendants cite *Will v. Mich. Dept. of State Police*, 491 U.S. 58 (1989) to assert that "Section 1983 . . . does not provide a federal forum for litigants

who seek a remedy against a State for alleged deprivations of civil liberties." *Id.* at 66. However, the Supreme Court in *Will* went on to say that "a state official in his or her official capacity, when sued for injunctive relief, would be a person under §1983 because 'official-capacity actions for prospective relief are not treated as actions against the State.'" *Id.* at 71 n. 10 (citing *Kentucky v. Graham*, 473 U.S. 159 (1985); *Ex parte Young*, 209 U.S. 123 (1908)). The claims against the defendants in their official capacities in so far as they sought injunctive relief were properly brought under §1983.¹ Therefore, this objection by the defendant is without merit.

Based on the foregoing, this court finds that the objections are without merit. Magistrate Judge Carr's Report and Recommendation is adopted and incorporated herein by reference. Therefore,

IT IS ORDERED that the defendants' motion for summary judgment is hereby granted.

IT IS SO ORDERED.

/s/ Henry M. Herlong, Jr.
Henry M. Herlong, Jr.
United States District Judge

Greenville, South Carolina
November 1, 1991

¹ This is true even though this court find that the plaintiff is not entitled to relief on the merits of the claims.

UNITED STATES DISTRICT COURT

DISTRICT OF South Carolina
Columbia Division

Gary Lee Roller

Plaintiff

V.

Michael J. Cavanaugh, Executive
Director of the South Carolina
Department of Probation, Parole
and Pardon Services, et al.

**JUDGMENT IN A
CIVIL CASE**

(Filed

Nov 12 1991)

CASE NUMBER:
3:90-3054-20J

- [] **Jury Verdict.** This action came before the Court for a trial by jury. The issues have been tried and the jury has rendered its verdict.
- [X] **Decision by Court.** This action came to hearing before the Court. The Court having adopted the recommendation of the U.S. Magistrate Judge, and having duly heard and granted the defendants' motion for summary judgment, IT IS ORDERED AND ADJUDGED.

That summary judgment is hereby entered for defendants Michael J. Cavanaugh, Executive Director of the South Carolina Department of Probation, Parole and Pardon Service and the South Carolina Department of Probation, Parole and Pardon Service.

November 12, 1991
Date

/s/ ANN A. BIRCH
Clerk

/s/ Carol E. Moment
Carol E. Moment
(By) Deputy Clerk

**PUBLISHED
UNITED STATES COURT OF APPEALS
FOR THE FOURTH CIRCUIT**

GARY LEE ROLLER,

Plaintiff-Appellant,

v.

MICHAEL J. CAVANAUGH, Executive
Director of the South Carolina
Department of Probation, Parole,
and Pardon Services; SOUTH
CAROLINA DEPARTMENT OF PROBATION,
PAROLE, AND PARDON SERVICES,

Defendants-Appellees.

No. 91-6688

Appeal from the United States District Court
for the District of South Carolina, at Columbia.
Henry Michael Herlong, Jr., District Judge.
(CA-90-3054-3-20-J)

Argued: December 3, 1992

Decided: January 15, 1993

Before RUSSELL and HALL, Circuit Judges, and
MORGAN, United States District Judge for the Eastern
District of Virginia, sitting by designation.

Reversed and remanded by published opinion. Judge
Hall wrote the opinion, in which Judge Russell and Judge
Morgan joined.

COUNSEL

ARGUED: W. Gaston Fairey, FAIREY & PARISE, P.A.,
Columbia, South Carolina, for Appellant. Carl Norman
Lundberg, Chief Legal Counsel, SOUTH CAROLINA
DEPARTMENT OF PROBATION, PAROLE & PARDON
SERVICES, Columbia, South Carolina, for Appellees. **ON**
BRIEF: Edwin E. Evans, Chief Deputy Attorney General,
Columbia, South Carolina, for Appellees.

OPINION

HALL, Circuit Judge:

Gary Lee Roller appeals an order of the district court
granting summary judgment for the defendants in
Roller's 42 U.S.C. § 1983 suit challenging the frequency of
his parole reconsideration hearings. We must decide
whether a statutory amendment increasing the length of
time between parole reconsiderations from every year to
every two years is an unconstitutional *ex post facto* law if
applied to prisoners whose crimes were committed before
the amendment. Concluding that it is, we reverse.

I.

In early 1983, Gary Roller was convicted of voluntary
manslaughter and grand larceny in South Carolina state
court. Both of these crimes occurred on December 13,
1982. On March 25, 1983, he was sentenced to consecutive
terms of imprisonment of thirty and five years. At that
time, a South Carolina statute provided that, within
ninety days of the prisoner's becoming eligible for parole,
the Parole Board would review the case and determine

whether to grant parole. If the Board decided not to grant parole, "the prisoner's case shall be reviewed every twelve months thereafter for the purpose of such determination." Former S.C. Code 24-21-620 (1976 & Supp. 1981). In 1986, this statute was amended to make reconsideration of parole for violent offenders less frequent - every two years. S.C. Code § 24-21-645 (1989 & Supp. 1991). The date at which a prisoner initially becomes eligible for parole, however, was not changed.

In 1990, Roller became eligible for parole. On October 31, 1990, the Board rejected parole, and advised Roller that his next hearing would be held October 31, 1992.¹

On December 28, 1990, Roller filed this suit under 42 U.S.C. § 1983 against the members of the Parole Board in their official and personal capacities. He sought monetary, declaratory, and injunctive relief. The gravamen of his claim was that application of the less-frequent parole review to him violated the federal constitution's prohibition of *ex post facto* laws.

The defendants moved for summary judgment. The magistrate recommended that the motion be granted. Over Roller's objections, the district court adopted the magistrate's recommendation.

Roller appeals.

¹ We were advised at oral argument that this hearing was held, and parole was denied.

II

A.

The district court held that Roller's official-capacity claims for damages were not cognizable under § 1983, see *Will v. Michigan Dept. of State Police*, 491 U.S. 58 (1989), and that the defendants had not overstepped their qualified immunity² so as to subject themselves to personal liability. See *Harlow v. Fitzgerald*, 457 U.S. 800 (1982). On appeal, Roller does not challenge these rulings. Because, however, prospective relief to stop unconstitutional practices by states is available in federal courts, *Ex parte Young*, 209 U.S. 123 (1908), Roller's claims for declaratory and injunctive relief are not affected by the defendants' immunities. *Pulliam v. Allen*, 466 U.S. 522 (1984).

B.

In 1973, in the midst of an unprecedented influx of civil rights suits by prisoners, the Supreme Court held that

when a state prisoner is challenging the very fact or duration of his physical imprisonment, and the relief he seeks is a determination that he is entitled to immediate release or a speedier release from that imprisonment, his sole federal remedy is a writ of habeas corpus.

² Because qualified immunity suffices to shield the defendants from personal liability, we need not decide whether the scheduling of parole reconsiderations is performance of a quasi-judicial function, for which the defendants would have absolute immunity. See generally, *Forrester v. White*, 484 U.S. 219, 225-229 (1988); *Pope v. Chew*, 521 F.2d 400, 405 (4th Cir. 1975).

Preiser v. Rodriguez, 411 U.S. 475, 509 (1973). The defendants here argue that Roller is attacking a part of his sentence – parole eligibility – and § 1983 does not provide relief. The *Preiser* distinction is important here because Roller has not exhausted his state remedies on his *ex post facto* claim – a general prerequisite to federal habeas corpus relief, but not to a § 1983 suit.

In *Strader v. Troy*, 571 F.2d 1263 (4th Cir. 1978), we held that § 1983 was the proper vehicle for a defendant who sought to preclude a state parole board from considering allegedly invalid prior convictions. Because the petitioner did not assert that he was *entitled* to parole, “now or ever,” no exhaustion of the state habeas remedy was required. Like the inmate in *Strader*, Roller does not say he is entitled to parole. We follow *Strader* and find that Roller has stated a cognizable § 1983 claim.

III.

A.

The Constitution prohibits both the federal and state legislatures from passing *ex post facto* laws. U.S. Const. art I, § 9, cl.3 and § 10 cl. 1. Neither Congress nor the states may “enact any law ‘which imposes a punishment for an act which was not punishable at the time it was committed; or imposes additional punishment to that then described.’ ” *Weaver v. Graham*, 450 U.S. 24, 28 (1981) (quoting *Cummings v. Missouri*, 4 Wall. 277, 325-26 (1867)). Though there is no constitutional requirement that a state permit parole or early release from confinement, *Greenholtz v. Inmates of Nebraska Penal & Correctional Complex*, 442 U.S. 1 (1979), statutes providing for parole are “part

of the law annexed to the crime at the time of the person’s offense.” *Schwartz v. Muncy*, 834 F.2d 396, 398 n.8 (4th Cir.1987) (quoted in *Fender v. Thompson*, 883 F.2d 303, 305 (4th Cir. 1989).

The *ex post facto* clauses are a restriction on the power of government and operate without regard to the affirmative “rights” of the individual. Consequently, it is immaterial to an *ex post facto* challenge to computation of a release or parole eligibility date that the prisoner does not have a “vested” liberty or property right in parole, “good time,” or the like. *Weaver*, 450 U.S. at 29-30 (criticizing state court for rejecting *ex post facto* claim by finding no “vested right” to good time credits).

The South Carolina Supreme Court has rejected a challenge identical to Roller’s. *Gunter v. State*, 298 S.C. 113, 378 S.E.2d 443 (1989).

B.

Four of our sister courts of appeals have directly addressed whether a retroactive reduction in the frequency of parole consideration violates the *ex post facto* clause. Three have held that it does, though the Ninth Circuit’s opinion was vacated on other grounds and is thus a nullity. *Rodriguez v. United States Parole Comm’n*, 594 F.2d 170 97th Cir. 1979) (parole reconsideration changed from one-third point in sentence to every eighteen months; *ex post facto* clause violated as to a prisoner serving only a two-year sentence); *Watson v. Estelle*, 859 F.2d 105 (9th Cir. 1988), *vacated*, 886 F.2d 1093 (1989); *Akins v. Snow*, 922 F.2d 1558 (11th Cir.), *cert. denied*, 111 S.Ct. 2915 (1991); *but see Bailey v. Gardebring*, 940 F.2d 1150

(8th Cir. 1991), *cert. denied*, 112 S.Ct. 1516 (1992) (lead judge held that administrative rule was not a "law" subject to *ex post facto* clause; one judge concurred only in the result; the third dissented).

In *Akins*, the Eleventh Circuit considered a Georgia statute that decreased the frequency of parole hearings from once a year to once every eight years. The court held that this change affected the substantive rights of persons who committed crimes before its enactment, and was not simply a "procedural change." The court reasoned:

Since the [parole board] is required to hold some type of parole reconsideration hearing **before** granting parole, an inmate is effectively **ineligible** for parole between two reconsideration hearings. Because an inmate is not paroled without a parole reconsideration hearing, the hearing must be considered an essential part of parole eligibility.

922 F.2d at 1562 (boldface in original).

The appellees cannot convincingly distinguish *Akins*. They concede that a seven-year increase in a prisoner's wait between reconsiderations is so long that it is substantive, but assert, "[a]s if you could kill time without injuring eternity,"³ that a one-year wait is "procedural" and presents no *ex post facto* difficulty. See *Dobbert v. Florida*, 432 U.S. 282 (1977) (*ex post facto* clause does not "limit the legislative control of remedies and modes of

³ Thoreau, *Walden; or, Life in the Woods*, "Economy," reprinted in *Walden and Other Writings* by Henry David Thoreau 111 (Bantam Classic ed. 1981).

procedure which do not affect matters of substance").⁴ We are not willing to disparage the "substance" of a year, especially a year in prison.

Defendants also point out that Roller becomes and remains "eligible" for parole just as he would have under the law in effect when he committed his crimes. The defendants do not, however, identify any benefit flowing from the status of "eligibility" other than the right to be heard and considered for parole. Eligibility without consideration is a cold comfort.

This circuit has no case so directly on point as *Akins*; however, two cases provide us considerable guidance. In *Schwartz v. Muncy*, 834 F.2d 396 (4th Cir. 1987), the court reviewed a Virginia statute that increased the time before an inmate would become eligible for parole on existing sentences if the inmate committed a third offense after the statute's effective date. The court held that the statute increased the punishment for a crime completed before its enactment, and thus the statute violated the *ex post facto* clause.

In *Fender v. Thompson*, 883 F.2d 303 (4th Cir. 1989), a state inmate was serving a life sentence. Under the state law in effect at the time of the crime, the inmate was

⁴ Cf. cases in which changes in the manner of reimposing sentence after the original sentence is set aside have been held to present no *ex post facto* problem. *Collins v. Youngblood*, 497 U.S. 37 (1990) (Texas statute allowing appellate court to reform illegal sentence); *Evans v. Thompson*, 881 F.2d 117 (4th Cir. 1989), *cert. denied*, 110 S.Ct. 3255 (1990) (Virginia statute providing that capital defendants whose sentences are vacated may be resentenced before a new jury).

eligible for parole after fifteen years. The state legislature later passed a law revoking the parole eligibility of inmates who escaped while serving life sentences. The inmate escaped after passage of the new law, and his eligibility for parole was revoked. We held that, though the state could punish escape in almost any manner it pleased, it could not do so by increasing the punishment for crimes committed before the new escape statute was enacted. We stated this general rule:

[S]tatutes enacted or amended after a prisoner was sentenced cannot be applied to alter the conditions of or revoke his or her preexisting parole eligibility. . . .

883 F.2d at 306. South Carolina has undoubtedly applied its new statute to "alter the conditions of . . . [Roller's] preexisting parole eligibility." Indeed, it has effectively "revoked" eligibility for an extra year following a denial.

The judgment is reversed, and the case is remanded with instructions to grant declaratory, and, if necessary, injunctive,⁵ relief in favor of Roller. Our decision does not, of course, require or even suggest that Roller be paroled. South Carolina need never parole him, so long as it considers the question every year.

REVERSED AND REMANDED

⁵ See *Steffel v. Thompson*, 415 U.S. 452, 468-471 (1974) (district court may anticipate that state authorities will comply with a declaratory judgment and thereby forego issuing an injunction).

S.C. Code Ann. § 24-21-610 (1976) enacted June 15, 1981 (Parole Eligibility)

"Section 24-21-610. In all cases cognizable under this chapter the Board may, upon ten days' written notice to the solicitor and judge who participated in the trial of any prisoner, parole such prisoner convicted of a felony and imprisoned in the state penitentiary, in any jail or upon the public works of any county:

- (1) Who, if sentenced for not more than thirty years, shall have served at least one third of the term;
- (2) Who, if sentenced to life imprisonment or imprisonment for any period in excess of thirty years, shall have served at least ten years;
- (3) Who, if he is a first offender and is sentenced for an indeterminate term shall have served the minimum for which he was sentenced.

Provided, if after January 1, 1984, the Board shall find that the statewide case classification system provided for in Chapter 23 of this title has been implemented, that an intensive supervision program for parolees who require more than average supervision has been implemented, that a system for the periodic review of all parole cases in order to assess the adequacy of supervisory controls and of parolee participation in rehabilitative programs has been implemented, and that a system of contracted rehabilitative services for parolees is being furnished by public and private agencies, then in all cases cognizable under this chapter the Board may, upon ten days' written notice to the solicitor and judge who participated in the trial of any prisoner, to the victim or victims, if any, of such felony, and to the sheriff of the county where the

prisoner resides or will reside, parole such prisoner convicted of a felony and imprisoned in the state penitentiary, in any jail or upon the public works of any county:

(1) Who, if sentenced for the crime of murder, armed robbery, criminal sexual assault, assault and battery with intent to kill or kidnapping, shall have served at least one third of the term; provided, that for any other crime the prisoner shall have served at least one fourth of the term;

(2) Who, if sentenced to life imprisonment or imprisonment for any period in excess of forty years shall have served at least ten years;

(3) Who, if he is a first offender and is sentenced for an indeterminate term shall have served the minimum for which he was sentenced.

Provided, further, that the provisions of this section shall not affect the parole ineligibility provisions for murder and armed robbery as set forth respectively in Section 16-3-20 and Section 16-11-330.

Provided, further, that in computing parole eligibility, no deduction of time shall be allowed in any case for good behavior, but that after June 30, 1981, there shall be deductions of time in all cases for earned work credits, notwithstanding the provisions of Section 16-3-20, Section 16-11-330 and Section 24-13-230.

Notwithstanding the provisions of this section, the Board may parole any prisoner not sooner than one year prior to the prescribed date of parole eligibility when, based on medical information furnished to it, the Board determines that the physical condition of the prisoner concerned is so serious that he would not be reasonably

expected to live for more than one year. Notwithstanding any other provision of this section or of law, no prisoner who has served a total of ten consecutive years or more in prison shall be paroled until the Board has first received a report as to his mental condition and his ability to adjust to life outside the prison from a duly qualified psychiatrist or psychologist."

S.C. Code Ann. § 24-21-620 (1976)
enacted June 15, 1981 (parole hearing
rescheduling)

"Section 24-21-620. Within the ninety-day period preceding a prisoner having served one-fourth of sentence, the Board, either acting in a three-member panel or meeting as a full Board, shall review the case, regardless of whether or not any application has been made therefor, for the purpose of determining whether or not such prisoner is entitled to any of the benefits provided for in this chapter; provided, that in cases of prisoners in confinement due to convictions for nonviolent crimes, an administrative hearing officer may be appointed by the Commissioner of Pardons and Paroles to review the case who shall submit to the full Board written findings of fact and recommendations, which shall be the basis for a determination by the Board. Upon an affirmative determination, the prisoner shall be granted a provisional parole. Upon a negative determination, the prisoner's case shall be reviewed every twelve months thereafter for the purpose of such determination.

**S.C. Code Ann. § 24-21-645 (1976) enacted
June 3, 1986 (parole hearing rescheduling)**

"Section 24-21-645. The Board may issue an order authorizing the parole which must be signed either by a majority of its members or by all three members meeting as a parole panel on the case, ninety days prior to the effective date of the parole; provided that at least two-thirds of the members of the Board must authorize and sign orders authorizing parole for persons convicted of a violent crime as defined in Section 16-1-60. A provisional parole order shall include the terms and conditions, if any, to be met by the prisoner during the provisional period and terms and conditions, if any, to be met upon parole. Upon satisfactory completion of the provisional period, the Executive Director or one lawfully acting for him, shall issue an order, which, if accepted by the prisoner, shall provide for his release from custody.

Provided, that upon a negative determination of parole, prisoners in confinement for a violent crime as defined in Section 16-1-60 must have their cases reviewed every two years for the purpose of a determination of parole."

**S.C. Code Ann. § 24-21-650 (1976) enacted
June 3, 1986 (parole hearing rescheduling)**

"Section 24-21-650. The Board shall issue an order authorizing the parole which must be signed by at least a

majority of its members, with terms and conditions, if any; provided, that at least two-thirds of the members of the Board must sign orders authorizing parole for persons convicted of a violent crime as defined in Section 16-1-60. Thereupon the supervisor of parole, or one lawfully acting for him, shall issue a parole order, which, if accepted by the prisoner, shall provide for his release from custody.

Provided, that upon a negative determination of parole, prisoners in confinement for a violent crime as defined in Section 16-1-60 must have their cases reviewed every two years for the purpose of a determination of parole."

**S.C. Code Ann. § 16-1-60 (1976) enacted
June 3, 1986
(Definition of violent crime)**

"Section 16-1-60. For purposes of definition under South Carolina law a violent crime includes the offenses of murder, criminal sexual conduct in the first and second degree, assault and battery with intent to kill, kidnapping, voluntary manslaughter, armed robbery, drug trafficking as defined in Section 44-53-370(e), arson in the first degree, burglary in the first degree, and burglary in the second degree under Section 16-11-312(B)."
